

Atul Partap Agrahari And vs Manju Khanna on 26 December, 2025

Author: Rajnesh Oswal

Bench: Rajnesh Oswal

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2025:JKLHC-JMU

HIGH COURT OF JAMMU & KASHMIR AND LADAKH
AT JAMMU

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CRMC No. 283/2018

Atul Partap Agrahari and
others

.....Appellant(s)/Petitioner(s)

Through: Mr. Taushar Chopra, Adv. vice
Mr. Jasbir Singh Jasrotia, Adv.

vs

Manju Khanna

..... Respondent(s)

Through: None.

Coram: HON'BLE MR. JUSTICE RAJNESH OSWAL, JUDGE

ORDER (ORAL)

26.12.2025

1. The petitioners have filed the instant petition for quashing the application, titled, 'Manju Kumari vs. Atul Partap Agrahari & ors.' filed by the respondent under Section 12 of the Domestic Violence Act, 2010 pending before the court of learned Sub Registrar, Jammu (for short 'the trial court'). The petitioners have also sought quashing of order dated 08.06.2017 passed in application filed by the respondent, whereby the petitioner No. 1 has been directed to pay 5000/- per month as maintenance to the respondent.

2. It is contended that the respondent is not the legally wedded wife of petitioner No. 1 and the said marriage is outcome of fraud, cheating and coercion, as petitioner No. 1 has already challenged the same before the Family Court. It is also the contention of the petitioners that the respondent is totally unknown to petitioner Nos. 2 and 3 and they were 2025:JKLHC-JMU:4545 not even aware of any alleged marriage between petitioner No.1 and respondent. It is further urged that there is no domestic relationship between the petitioners and the respondent.

3. The respondent has filed response stating therein that on 04.07.2014 both petitioner No. 1 and respondent executed a marriage agreement before the Notary Public at Jammu. On 09.07.2024, the marriage was performed in accordance with Hindu custom and rites. As the marriage was solemnized without consent of petitioner Nos. 2 and 3, petitioner No.1 filed a complaint against petitioner No.2 and even made statement before the court of learned 2nd Add. Munsiff, Jammu. Thereafter dramatically, petitioner Nos. 2 and 3 allowed the petitioner No.1 and respondent to live along with them at Nanak Nagar, Jammu. It is stated that petitioner Nos. 2 and 3 started demanding dowry from the respondent in the form of 40-50 lacs in cash and golden ornaments for each member of the family including the transfer of parental house of the respondent in favour of the petitioner No. 1. It is also stated that petitioner No. 3 even threatened the respondent that she would either give her poison in the food or burn her alive by pouring kerosene oil over her. On 13.09.2014, petitioner Nos. 2 and 3 thrashed the respondent and thereafter cleverly sent the petitioner No. 1 to his ancestral house at Gorakhpur, UP without the consent and knowledge of the respondent. In the month of November 2014, petitioner Nos. 2 & 3 asked her to meet their demands, then they would call petitioner No. 1 back and allow him to join the company of the respondent. Ultimately, she was turned out of her matrimonial home on 01.12.2014. It is further stated that the petitioners were residing at CRMC No. 283/2018 2|Page 2025:JKLHC-JMU:4545 Jammu at H. No. 220/A, Ward No. 44 in Nanak Nagar Jammu, which is evident from their ration card as well. It is further averred that petitioner No.2, who was serving in Jammu, managed his posting out of Jammu and left Jammu. Respondent has also placed on record the copy of decree passed in favour of respondent and against the petitioner No.1 in a petition filed under Section 9 of Hindu Marriage Act.

4. Heard learned counsel for the petitioner and perused the record.

5. Learned counsel for the petitioners has pressed this petition only for petitioner Nos. 2 and 3. The contention raised by the petitioners is that petitioner Nos. 2 and 3 have no domestic relationship with the respondent, and as such, the application filed by her before the learned trial court is not maintainable and deserves to be quashed. Whether there is domestic relationship between the petitioner Nos. 2 and 3 with respondent, is a disputed question of fact, that requires to be adjudicated by the learned trial court on the basis of evidence led by the parties and not in a petition filed under section 561-A Cr.P.C. Petitioner Nos. 2 and 3 are well within their right to raise any defence available to them before the learned trial court.

6. In view of the above, this Court does not find any reason to show indulgence to quash the impugned application, as such, the instant petition is disposed of leaving the petitioner Nos. 2 and 3 free to project their defence before the learned trial court.

7. At this stage, learned counsel for the petitioners has requested that petitioner Nos. 2 and 3 be exempted from personal appearance before learned trial court. Accordingly, the request is granted and petitioner CRMC No. 283/2018 3|Page 2025:JKLHC-JMU:4545 Nos. 2 and 3 are permitted to appear through their counsel until the trial court directs otherwise.

8. Ordered accordingly.

